

Contra Costa Superior Court within 30 calendar days of service of notice of entry of order. Further, pursuant to Business and Professions Code Section 6086.7, the Court instructs the clerk of the Court to report these findings and orders to the State Bar of California.

\*The court reserves the right to supplement this opinion with additional citations to the certified transcript from April 1, 2026.

12. 9:00 AM CASE NUMBER: N26-0240  
CASE NAME: CHELSEA STORKAN VS. DIRECTOR, DEPARTMENT OF MOTOR VEHICLES  
HEARING IN RE: PETITION FOR WRIT OF ADMINISTRATIVE MANDAMUS  
FILED BY: STORKAN, CHELSEA  
\*TENTATIVE RULING:\*

Hearing on this petition is continued on the court's motion to August 7, 2026 at 9:00 a.m., Dept. 32.

The administrative record was not received by the Court until May 21, 2026, which was too late for the Court to review for this hearing.

Opposition, if any to the Petition for Writ of Mandamus must be filed and served 9 court days in advance of the hearing. Reply pleadings must be filed and served 5 court days in advance of the hearing.

13. 9:00 AM CASE NUMBER: N26-0285  
CASE NAME: TANGELA MENZISE VS. DIRECTOR, DEPARTMENT OF MOTOR VEHICLES  
HEARING IN RE: PETITION FOR WRIT OF MANDATE  
FILED BY:  
\*TENTATIVE RULING:\*

Petition for Writ of Mandate is **denied without prejudice. The hearing on this matter will be continued to October 23, 2026 at 9:30 a.m. in Department 32.**

Petitioner has failed to provide the Court with a certified copy of the administrative record. (Govt. Code §11523.) Petitioner has the burden to

provide the Court with a certified copy of the administrative record before a hearing can be had on the petition. (Contra Costa v. Social Welfare Board (1962) 199 Cal.App.2d 468, 471 [disapproved on other grounds in Frink v. Prod (1982) 31 Cal.3d 166]; Leal v. Gourley (2002) 100 Cal.App.4th 963, 970.)

Without the administrative record, a court cannot proceed in compliance with CCP §1094.5. (Buckhart v. San Francisco Residential Rent Stabilization & Arbitration Board (1988) 197 Cal.App.3d 1032, 1036; Elizabeth D. v. Zolin (1993) 21 Cal.App.4th 347, 354.) Based upon the lack of a certified or complete copy of the administrative record of the DMV hearing for the suspension of Plaintiff's license, the petition must be denied or the hearing continued.

The Court notes that it does not appear that the DMV was validly served with the Petition for Writ of Mandamus. Under California Code of Civil Procedure Section 1096 a writ of mandate must be served in the same manner as a summons in a civil action. This means the Plaintiff's "Proof of Service by First Class Mail," filed February 20, 2026, and purporting to show that the Petitioner's Petition for Writ of Administrative Mandamus, Request for Administrative Record, and Notice of Motion for Writ of Administrative Mandamus was mailed to the DMV did not constitute valid service. In addition, Petitioner has not shown compliance with Vehicle Code Section 24.5 for service of civil process against the DMV.

Plaintiff filed a document entitled "Request for Administrative Record" on February 18, 2026, which appears to be addressed to the DMV, but the file contains no proof that this request was properly served upon the DMV.

PASTERULESHERE

**Discovery Law & Motion**

**14. 9:01 AM CASE NUMBER: C23-00634**

**CASE NAME: JANE DOE VS. GOLDEN GATE BELL, LLC.**

**\*HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH COURT ORDER FOR PRODUCTION/INSPECTION OF DEFENDANTS' ELECTRONICALLY STORED INFORMATION**

**FILED BY: DOE, JANE**

**\*TENTATIVE RULING:\***